TOWN OF MOUNT PLEASANT, SOUTH CAROLINA
BOARD OF ZONING APPEALS
MAY 23, 2022
MINUTES

STAFF REPORT

Present: Stephen Wood, Chair, Julian Hopkins, Elliott Barrow, Aaron Butner, Megan Stevens; Giles Branch
Staff: Chris Swalhah, David Pagliarini, Michael Robertson, Christine Barrett
Others: Brian Quisenberry, Counsel for Board

Mr. Wood called the meeting to order at 6:00 pm.

A. Approval of Agenda

- *Mr. Hopkins moved to approve the agenda. Ms. Stevens seconded the motion. All in favor.*

B. Approval of Minutes

- *Julian Hopkins moved to approve the minutes. Megan Stevens seconded the motion. All in favor.*

C. Public Comment

- There being no comments, Mr. Wood continued with the agenda.

D. General Correspondence

- All correspondence was linked to the agenda.

E. Explanation of Procedures

- Mr. Wood explained the procedures for the public.

F. Administration of Oath

- Mr. Wood administered the oath to those speaking.

G. Business

1. Case A-01-2022, Central Mount Pleasant Tracks 4-1 & 4-5, TMS#5590000017 & 5590000538. Appeal of the zoning official's determination that the project known as Gather Mount Pleasant met the parking requirements of §156.172(A)(3)(a).

- Mr. Swalhah reviewed staff comments with the Board.

- Mr. Robertson, Zoning Administrator, reviewed the process of appeal with the Board.

MEMO

- Mr. John Massilon, representative for the applicant, stated that he has additional information for the Board.

- Mr. *Barrow moved to have any matters not previously provided to the Board or public admitted now. Aaron Butner seconded the motion. Julian Hopkins, no, all other present voted in favor. Motion carries 5-1.*

- Mr. Massilon reviewed the request with the Board.

- Mr. Mac Cross, developer for the project, stated that they are not proposing anything outside of their existing rights. He stated that he reached out to Ms. Dinkins when he learned about the appeal and met with her and residents to answer any questions or concerns. He stated that the parking has been amended based on concerns and would add additional parking. He stated that there is also a shared parking agreement that is in place and recorded that provides shared use and access for the project.

- Mr. Jason Hutchinson, Thomas and Hutton, shared with the Board that the planned development has been approved for many years. He stated that the plans did not indicate a prohibition on perpendicular parking for the project.

- Mr. Trey Adams, 1336 Parkton Road, stated that he is excited to see this project completed. He stated that he conducted a survey and the results showed that the majority of those responding were in favor of

the project. He expressed frustration that the appeal seems to be "out of order" and prematurely appealing something. He expressed concern that the Town has a reputation of being anti-development. He suggested that the Town should develop in a "smart way" that provides amenities and commercial development as well as residential development.

- Ms. Sherry Godfrey, representative for owners at 1646 Florentia Street. She suggested that the neighborhood streets is extremely narrow and dangerous. She expressed concern that the project would increase traffic on an already dangerous roadway. She expressed concern with child safety. She suggested that the project is too large for the neighborhood. Shared the streets are too narrow and dangerous.

- Mr. James Thompson, 99 West Edge, Charleston, a prospective investor, suggested that development will continue in the Town. He suggested that this project appears to meet all the requirements and includes an open courtyard. He suggested that he would like to see the project go forward.

- Mr. Wood administered to oath to Ms. Brannon. Ms. Cheryl Brannon, 1416 Appling Drive, stated that the Midtown development did share with potential residents that this property would be developed. She stated that many of her neighbors are excited for this project to be completed as it would provide another place for residents to gather and make this area of the Town attractive.

- Mr. Jake Barker, attorney for The Gather, objected to any additional materials being considered that were not submitted by the deadline. He reviewed the Board's purview regarding this request. He suggested that the appeal was premature as previously indicated by the Zoning Administrator, a decision has not been made on the parking and therefore, there is nothing to appeal. He suggested that a final plan for approval has not been submitted. He suggested that only after a decision on the final plan is made, can an appeal be filed.

- Mr. Eric Thome, 17 Lindendale, Charleston, stated that he is in favor of the project.

Mr. Ben Grandy, 1219 Appling, stated that he recently moved here from Greenville and experienced The Gather in Greenville. He stated that he is excited for the project to be completed and have an area within walking distance for his family and neighbors to enjoy.

Mr. Clinton Pillow, 1367 Rivella Drive, stated that he is very excited about this project and the project is part of the reason they moved to this neighborhood. He suggested that many of the neighbors would be walking to the project rather than driving.

Mr. Robby Arrington, 1375 Rivella Drive, stated that he is in favor of the project.

Mr. Jerry Benino, 1391 Rivella Drive, stated that he is in favor of the project. He suggested that some of the discussions are "petty" and not in the developer's control. He suggested that should be more productive discussion on the project.

Mr. Brian Page, 1375 Rivella Drive, stated that when looking to buy a home in the area, he was informed that the subject property would be developed, so it should not be a surprise that this project is being considered. He stated that he is in favor of the project.

Mr. Wood administered the oath to Mr. Chesney. Mr. Craig Chesney, 1564 Hancock Street, stated that there are concerns with the project, particularly the parking and that traffic will be directing onto Florentia and Hancock as it will be only one of two exits for the project. He expressed concern for child safety and that the additional traffic is of concern given the park abutting this project. He suggested that these issues could be mitigated and he is willing to work with the development to alleviate these concerns.

There being no further comments, Mr. Wood closed public comment.

Ms. Tomi Dinkins, applicant, rebutted that an easement agreement does not provide the right to change the easement, but only provide for use of the easement. She also suggested that there is not an agreement

for use of the parking as indicated on the plans. She suggested that the DRB checklist includes submission of a parking plan and that DRB should not be considering this project without that parking being included.

- Mr. Robertson, Zoning Administrator, rebutted that the appeal is premature. He stated that the parking requirements is a zoning code issue. He stated that DRB has purview to approve the location of the parking. He suggested that the applicant is the one that has not followed the procedures and is out of order with a premature appeal.

- Mr. Pagliarini stated that once the parking agreement is received, it would be reviewed by staff and legal and a determination made. He stated that the parking agreement has not been provided to the Town for review, so the appeal is premature.

- Ms. Stevens stated that she has previously worked with Mr. Cross on this project when the project was in its infancy, but Mr. Cross is no longer a client, and she is no longer involved with this development. She stated that this will not influence her decision for this issue.

- Mr. Barrow stated that Mr. Massilon is a friend and fellow colleague. He stated that this will not influence his decision on this issue.

- Mr. *Barrow moved to convene into executive session for legal advice. Mr. Hopkins seconded the motion. All in favor*

The Board convened into executive session at 6:58 p.m. and reconvened at 7:10 p.m. No decisions made while in executive session.

- *Mr. Barrow moved to have this matter remanded to the Zoning Administrator as there is insufficient information to consider this appeal on a substantive basis, and based on 156.172, this matter can be remanded to an administrative official, with a rehearing to be scheduled within sixty days, unless otherwise agreed to by both parties for an extension. Ms. Stevens seconded the motion. All in favor.*

2. Case V-12-2022, 589 Belle Hall Parkway, TMS#5560000190. Request for relief from the strict application of §156.171 to reduce the required amount of parking spaces.

- Mr. Swalhah reviewed staff comments with the Board.

Mr. Paul Charles reviewed the request with the Board.

- Mr. Lang Terrance, landlord of the property with parking agreement, stated that he supports the request.

There being no further comments, Mr. Wood closed public comment.

- Mr. *Hopkins moved for approval based on the findings that there are extraordinary conditions, approval will not be a detriment to surrounding properties and would enhance the utilization of the property. Mr. Branch seconded the motion. All in favor.*

3. Case V-13-2022, 1414 Heather Drive, TMS# 5321100068. Request for relief from the strict application of 156.225(C) to allow the removal of a Historic 25'' Laurel Oak Tree.

- Mr. Swalhah reviewed staff comments with the Board.

- Mr. Reed Dire, applicant, reviewed the request with the Board.

- Mr. Barrow recused himself due to a conflict of interest.

There being no comments, Mr. Wood closed public moved to Board questions.

- *Mr. Branch moved to approve removal of tree based on findings that there are clear and extraordinary circumstances as there is a life and safety issue because the tree is leaning towards the home. Mr. Hopkins seconded the motion. All in favor with Mr. Barrow abstaining.*

4. Case V-14-2022, 1419 Ben Sawyer Boulevard, TMS# 5321100190. Request for relief from the strict application of 156.173(B) to allow a

pervious parking lot. The ordinance requires all parking spaces to be surfaced with a suitable paving material such as asphalt, concrete, or specialty pavers (but not gravel or similar material)

- Mr. Swalhah reviewed staff comments with the Board.

Ms. Ashley Martin and Mr. John Martin, applicants, stated that they have additional information they would like the Board to review.

- *Mr. Hopkins moved to accept the additional documents. Ms. Stevens seconded the motion. All in favor.*

- Mr. and Ms. Martin reviewed the request with the Board.

There being no comments, Mr. Wood closed public comment.

- Mr. *Barrow moved to grant the request based on the findings that a hardship has been demonstrated; there are extraordinary conditions because of runoff from surrounding properties and the amount of impervious surface; the property would be unreasonably restricted if the variance were not approved; and there would not be a detriment to adjacent property. Approval of the request is granted with the conditions that handicap access is paved; the plan is approved by DRB; and the Town Engineer approves the gravel material to be used.*
Mr. Hopkins seconded the motion. All in favor.

H. Approval of Final Order

- The Board signed final orders.

There being no further business, the meeting adjourned at 8:03 pm.

Submitted by,
L. Lynes
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